MISH 02

DRUG FREE WORKPLACE

AGC CSEA Alignment

Worker Engagement, Involvement, and Participation

OSHA Core Element

Hazard Prevention and Control

Section Summary

Defines the Drug Free Workplace policy including pre-employment, random, post-incident, and for-cause testing protocols per DOT and company standards.

Core Values: Integrity | Honesty | Professionalism | Thoroughness

"Building projects for the client, NOT the dollar."

DRUG FREE WORKPLACE

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AGC CSEA Alignment	OSHA Core Element
Worker Engagement, Involvement, and Participation	Hazard Prevention and Control

2.2.2.1 Prescription Drugs: A drug prescribed to an individual by a licensed physician for medical reasons. These must be taken within the limits of the prescribed instructions.

2.2.2.2 Illegal Drugs: Any drug that is not prescribed to that specific individual, to exclude over the counter drugs, or prescription drugs that have expired or not taken following the direction of the physician. 2.2.3 Contraband: Any items or actions considered contraband to an onsite worker as defined by state or federal laws for illegal drugs and associated items.

2.3 Testing of employees:

2.3.1 Employees will be required to undergo a body fluids test under the following circumstances:

2.3.1.1 Pre-employment: Prior to the start of, and as a condition of employment on an MH Construction contract or properties, prospective workers will be required to sign the specimen to test for the presence of prohibited substances. Presence of one or more prohibited substances or inconclusive test results will be cause for rejection of employment with MH Construction. Refusal to provide a specimen for the test will be considered voluntary withdrawal of the application for employment. The prospective employee will conduct the drug test prior to showing up at the job location. MH Construction will pay for the pre-employment drug test regardless of test results.

2.3.1.2 Random: MH Construction employees will be set into a random drug & alcohol testing pool. The rate will be equal to 30 percent of the group population for each 12 month period. Selection for testing will be performed by a business sensitive computerized system. Notification will be given to the employee by their responsible supervisor in a confidential manner, and that employee will then have 3 hours to provide a sample. If testing is not complete within the 3 hour time or the employee fails to show up to the testing location, the test shall be considered a positive.

2.3.1.3 Post Accident: Post accident/incident, or an “occurrence”, drug & alcohol testing will be performed on all involved personnel unless Supervision & or Safety determine otherwise. Escorting of the personnel to the collection facility will be arranged by supervision.

2.3.1.4 Reasonable Suspicion: When MH Construction supervision has reason to suspect employee drug use or alcohol intoxication, testing will be performed in accordance with the provisions of Section 2.4.

2.4 Testing procedures:

2.4.1 All body fluids tests will be performed in accordance with standards and requirements found in the Department of Health and Human Services (HHS) Mandatory Guidelines. These guidelines provide direction for random selection of employees for testing; obtaining urine specimens for testing; specimen chain of custody forms and assurances; laboratory methodology including analysis sensitivity levels; and quality control.

Screening for alcohol will conform to Department of Transportation procedures. These procedures establish requirements for specimen collection, specimen analysis, quality assurance, invalid tests, refusal to test, uncompleted tests, privacy, and disclosure of alcohol testing information, and record keeping.

Body fluids tests will normally utilize only urine specimens. Tests which entail the withdrawal of blood will be exercised only in situations involving an injury accident where an employee is rendered unconscious and unable to provide a urine specimen. 2.4.2 Basic tests which give a positive indication of drug use above the thresholds outlined in ADDENDUM "A" will be confirmed by an alternate pre-approved method of testing as outlined in ADDENDUM "B".

2.4.3 An employee suspected of being under the influence of a prohibited substance shall, for reasons of safety, be tested and suspended until test results have been reviewed by the appropriate agency. If a test proves negative, the employee will be reinstated with back pay.

2.4.4 Workers who test positive with a 0.02 Blood Alcohol Concentration (BAC) will be sent home the first infraction and suspended in accordance to 2.6 on the second infraction. Workers who test positive with a 0.04 BAC are subject to immediate suspension in accordance with 2.6.

2.5 Prescription drugs:

2.5.1 Employees using a prescription drug which may impair mental or motor functions shall inform the Safety Coordinator of such drug use. For the safety of all employees, the company may place persons using such drugs in a less hazardous job assignment, or place them on temporary medical leave until released as fit-for-duty by the prescribing physician. The company reserves the right to have its physician determine if a prescription drug produces hazardous effects, or to restrict the quantity the employee is allowed to bring to the workplace.

2.6 Disciplinary action:

2.6.1 Applicants testing positive/inconclusive will not be hired. Applicants may be eligible for re-hire in one year and after completing a drug and/or alcohol rehabilitation referral program and test negative (refer to 2.7) for all positive test. Employee's testing that is inconclusive may be eligible for hire if split test comes back negative.

2.6.2 Workers found using or selling drugs on company premises, or company time, will be subject to immediate termination and are in-eligible for re-hire.

2.6.3 Workers found under the influence of alcohol, or testing positive for drugs in both the basic and positive test verification while operating any equipment on company premises, or while driving any company or subcontractor vehicle will be subject to immediate termination.

2.6.1 Workers who violate the Contraband Laws in any way will be subject to immediate termination.

2.6.2 Workers who violate this Drug and Alcohol Policy in any other way, including testing positive for drugs, in both the basic and positive test verification will be given the opportunity to select immediate termination or rehabilitation and Treatment (refer to 2.7). 2.6.2.1 Immediate Termination. The employee's CONFIDENTIAL personnel file will be updated to include the nature and date of the violation. From that date on the individual will be permanently ineligible for employment with MH Construction unless the employee completes a drug/alcohol rehabilitation program and tests negative.

2.7 Rehabilitation and treatment:

2.7.1.1 Referral, counseling and rehabilitation. If the employee is eligible (and if the employee has not previously used it) the employee will be suspended without compensation during the time of counseling and treatment. Treatment will be as determined by an independent counselor. In all cases, counseling, treatment, and follow-up drug testing expenses will be the responsibility of the employee. When the counseling or rehabilitation has started and the employee completes a negative drug test, the employee may be eligible for employment with MH Construction. 2.7.2 The employee may be allowed to return to work with the company only after he/she agrees to and signs an "Agreement of Continuing Employment". After the employee has returned to work he/she will be subject to follow-up drug (to be paid by the employee) tests, which may occur at any time during the mandatory one-year probationary period following reinstatement. A positive result from such a test, or any subsequent tests, will lead to immediate termination. The employee may then be permanently ineligible for employment with MH Construction. If required by the company, the employee may have to finish the prescribed rehabilitation program

satisfactorily before the end of the one-year probationary period. Failure to complete the program, or unsatisfactory participation in this program, will result in immediate termination. Anyone refusing to cooperate with testing procedures will face the disciplinary alternative consistent with a positive test. 2.7.3 Individuals will be encouraged to seek help for a drug or alcohol problem before it deteriorates into a disciplinary matter. 2.7.4 If an individual voluntarily notifies his/her supervisor that he/she may have a substance abuse problem, the company will assist in locating suitable counseling and treatment services, and will counsel the individual regarding benefits available under their company or union insurance programs. If treatment necessitates a leave of absence, accrued vacation and sick leave time may be used (if applicable). All cost associated with treatment is the employee's responsibility. 2.7.5 Individuals returning to work after such a leave of absence will be subject to drug tests at any time during a mandatory one-year probationary period. A positive test will result in immediate removal from the site and may make the individual permanently ineligible for employment within the company.

2.8 Confidentiality:

All actions taken under this policy will be CONFIDENTIAL within the employer and the union (if any) representing the employee.

3.0 SITUATIONS NOT COVERED BY THIS POLICY:

3.1 Situations may arise which are not specifically covered by this policy. For example, situations involving employees who have been arrested or convicted for off-the-job illegal drug use or activity. Such situations will be dealt with on a case-by-case basis taking into account such things as the nature of the problem, the employee's overall employment record and job assignment, the potential impact on production, safety and customer and public perceptions or the company and it's services. Corrective or disciplinary action will be determined by the MH Construction Safety Coordinator and their Division Manager.

4.0 ARREST OR CONVICTION UNDER CRIMINAL DRUG STATUTE:

4.1 Individuals must notify the MH Construction Safety Coordinator within five days of an arrest or conviction of a criminal drug statute. Failure to do so will result in immediate removal from the company.

5.0 RESERVATION OF RIGHTS:

5.1 The company reserves the right to revise this policy. Nothing in this policy alters an individual's status. The company hopes each employment relationship will be a happy and enduring one. Nevertheless, workers remain free to resign their employment at any time for any or no reason. MH Construction's "Reservation of Rights" is also subject to any express modification contained in any applicable collective bargaining agreement.

6.0 AMENDMENTS TO POLICY:

6.1 Amendments to this policy may be issued to comply with project Owner requirements, state or local laws, or federal contract requirements.

7.0 SUBSTANCE ABUSE TESTING

7.1 Prior to employment, personnel shall complete a quick or instant test. The test shall be completed prior to showing up at the job location. Inconclusive quick or instant test results will be cause for rejection of employment with MH Construction. 7.2 Drug and alcohol testing of individuals shall be required as soon as practical, subsequent to work-related accidents. A work-related accident is defined as an accident that could have resulted in an injury requiring treatment by a physician (OSHA recordable) or could have resulted in damage to property or equipment. 7.4 Random testing-employees will be notified of when and where to take the drug test. Testing shall be done during working hours and completed within 3 hours of employee notification. If testing is not complete within the 3 hour time, the test shall be considered a positive.

7.5 Reporting of test results shall be handled discretely between the medical facility and the MH Construction Safety Coordinator. Results shall be reported by the facility as follows:

7.5.1 NEGATIVE, the individual is within the limits prescribed in “ADDENDUM A”

7.5.2 POSITIVE, the individual is not within the limits prescribed in “ADDENDUM A”

7.5.3 INCONCLUSIVE, a non-negative test utilizing quick or instant testing.

7.1 If requested by the individual, the results will be provided directly to the individual.

7.2 MH Construction and the medical facility agree that customary patient privacy in taking the described test will be provided. 7.3 MH Construction, the medical facility and the testing laboratory agree that security of biological specimens is absolutely necessary. Any breach of this security will require an immediate retest. 7.4 In the event of positive test results on both the basic and positive verifications test, the employee may have, within (3) days, the same specimen retested at a different licensed laboratory. Retesting shall be performed at the individual’s expense. In the event the retested results are different, the negative results will be accepted. 7.5 MH Construction, the medical facility, and the testing laboratory agree that the results of the described tests are to be held in strictest CONFIDENCE between the MH Construction Safety Director and the medical facility. It is further agreed that the results of the above test will not be provided to anyone other than the Safety Director at MH Construction without the written consent of the employee.

ADDENDUM “A”

THRESHOLD (CUTOFFS)

Drug

SCREENING

CONFIRMATION

Amphetamines 1000 500 ng/ml Barbiturates 200 200 ng/ml Benzodiazepines 200 200 ng/ml Cannabinoids 100 15 ng/ml Cocaine Metabolite 300 150 ng/ml Methadone 300 150 ng/ml Opiates 2000 2000 ng/ml Phencyclidine 25 25 ng/ml Propoxyphene 300 150 ng/ml Alternate Amphetamines 500 500 ng/ml 6 Mono Acetyl Morphine 10 10 ng/ml Masking Agent N/A N/A N/A

ADDENDUM “B”

LABORATORY PROCEDURES

EMIT METHOD INFORMATION (Basic Test) The name EMIT stands for Enzyme-Multiplied Immunoassay Technique. This technique is used for the microanalysis of drugs in biological fluids. Urine is mixed with two reagents. Reagent One contains antibodies specific to the particular drug, the coenzyme nicontinamide adenine dinucleotide (NAD) and the substrate G.6P (glucose 6 phosphate). Reagent Two contains a drug derivative labeled with ten enzymes G.6PDh. (glucose 6 phosphate dehydrogenate). Reagent one is added to the specimen and the antibody binds to any drug molecule in the patient specimen it recognizes. Reagent two is added next and the enzyme labeled drug combines with any remaining antibody; this binding decreases the enzyme label activity. The enzyme that remains unbound (therefore still active) relates directly to the concentration of drug in the specimen. The active enzyme converts NAD to NDAH, resulting in an absorbance change that is measured spectrophotometrically.

GAS CHROMATOGRAPHY-MASS SPECTROMETRY (Positive test verification): GS/MS is used as a confirmation of positive EMIT screens in laboratories. It generally allows identification of the specific drug involved. It also provides the ability to quantitate the cannabinoid and urine alcohol level present.

GC/MS is an analytical technique which allows one to separate substances based on their differential migration rate through a gas chromatographic column and then, virtually unequivocally, identify them based on their mass spectrum and the migration time. The technique has been generally accepted as a reference method for legal applications. GC/MS does have limitations related to sensitivity, the range of masses measurable and the requirements for specimen volatility and the thermal stability. In general however, for drug analysis, GC/MS is the most specific method available.

The GC/MS test is performed with a Hewlett-Packard model, 5970-B, which uses electron bombardment to produce a "finger-print" mass spectrum of each analyte as it elutes from the capillary column in the gas chromatography. An on-board computer correlates the mass spectrum with a stored library of compounds and produces a report of the probable substances in the specimen.

MH CONSTRUCTION

APPLICANT CONSENT TO DRUG AND ALCOHOL TESTING

I, _____, hereby consent and agree to give specimens of my body fluids* at a medical facility designated by MH Construction for transmittal and testing by an approved testing laboratory.

It is my understanding that the ultimate testing facility is licensed by the State, and body fluid* specimens will be tested to detect the presence of alcohol an/or other drugs in my body. All testing will be in accordance with standards currently disseminated and approved by the National Institute on Drug Abuse.

In addition to testing at the initial time of entry onto the job site, in the event I am directly involved in a work-related accident, or as part of on-site drug screening, or if there is reason to suspect my use of drugs or alcohol intoxication, I agree and consent to provide specimens of my body fluids* for testing to determine the presence of alcohol and/or drugs.

It is agreed that, upon request, I will be furnished results of tests performed on my body fluids* specimen by MH Construction, the employer, or the testing laboratory. The testing laboratory is only authorized to confirm to MH Construction and the employer whether test results are POSITIVE or NEGATIVE in accordance with predetermined threshold levels.

- Body fluids tests will normally utilize only urine specimens. Test, which entails the withdrawal of blood, will be exercised only in situations involving an injury accident where I am rendered unconscious and unable to provide a urine specimen, and I agree and consent to such a test under those circumstances.

I acknowledge that I have received, read and understand a copy of MH Construction's Drug and Alcohol Policy. Furthermore, I understand that refusal to submit to the alcohol and drug screening test will constitute voluntary withdrawal of my application to enter the job site; if already on site, refusal to submit to such testing will result in exclusion from the job site and the presence of one or more of those prohibited drugs at or above the defined threshold levels will result in disciplinary action as outlined in the Drug and Alcohol Policy.

Applicant Name (please print)

Applicant Signature

Witness Signature

Applicant Social Security Number

Today's Date

Employer

MH CONSTRUCTION

EMPLOYEE AGREEMENT TO CONDITIONS OF CONTINUING EMPLOYMENT

To be read, understood, and signed by employees returning to active employment after disciplinary action resulting from violation of MH Construction's Drug and Alcohol Policy.

I, _____ understand and agree that my continued employment with MH Construction is conditioned upon my being fit for duty, and not working under the influence of alcohol or drugs at any time.

I hereby consent and agree to give specimens of my body fluids* at a medical facility designated by MH Construction for transmittal and testing by an approved testing laboratory. It is my understanding that the ultimate testing facility is licensed by the State, and body fluid* specimens will be tested to detect the presence of alcohol and/or other drugs in my body. All testing will be in accordance with standards currently disseminated and approved by the National Institute on Drug Abuse.

I acknowledge that I will be under a one year probationary period commending on the date of my return to active employment with MH Construction. I agree and consent to provide specimens of my body fluids* for testing to determine the presence of alcohol and/or drugs whenever requested by the company during my one year probationary period, In addition, during my probationary period and throughout my continued employment with MH Construction, in the event I am directly involved In a work-related accident, or as part of on-site drug screening, or it there is reason to suspect my use of drugs or alcohol intoxications, I agree and consent to provide specimens of my body fluids* for testing to determine the presence or alcohol and/or drugs.

It is agreed that, upon request, I will be furnished results of tests performed on my body fluids* specimen by the Company or the testing laboratory. The testing laboratory is only authorized to notify MH Construction whether a test is POSITIVE or NEGATIVE in accordance with predetermined threshold levels.

- Body fluids tests will normally utilize only urine specimens. Test which entails the withdrawal of blood will be exercised only in situations involving an injury accident where I am rendered unconscious and unable to provide a urine specimen, and I agree and consent to such a test under those circumstances.

I acknowledge that I have read and understand MH Construction's Drug and Alcohol Policy. I agree to cooperate fully with any and all Company drug and alcohol testing requests, and I understand that my failure to cooperate fully, or submit to a drug or alcohol test when requested by the Company will result in my immediate termination of employment with MH Construction.

_____ Name Signature Date

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